

Court No. - 35
Case :- WRIT - C No. - 11255 of 2018
Petitioner :- Asha Singh
Respondent :- State Of U.P. And 4 Ors.
Counsel for Petitioner :- Rajesh Shukla,Pranesh Kumar Mishra
Counsel for Respondent :- C.S.C.,Abhishek Srivastava

Hon'ble Bharati Sapru,J.
Hon'ble Saral Srivastava,J.

Heard learned counsel for the parties.

The petitioner raises question with regard to the accuracy of the bills i.e. he disputes the amount in the bill.

Shri Mahboob Ahmad, learned counsel appearing for the respondent-corporation points out that under Clause 6.5 of the Electricity Supply Code, 2005, petitioner has a remedy of approaching the Executive Engineer, in case, he doubts the correctness of the bill.

Since the petitioner has a statutory remedy available under the Electricity Supply Code, we are not inclined to interfere in the matter and thus relegate the petitioner to avail the remedy provided under Clause 6.5.

In view of above, the petitioner may make an application before the concerned authority along with a certified copy of this order within a period of two weeks from today and, in case, any such application is made, the authority shall proceed to consider and decide the same in accordance with law by a reasoned and speaking order within a further period of one month from the date of making of such application.

For a period of six weeks or till the decision on the application to be made by the petitioner, whichever is earlier no coercive action shall be taken against the petitioner.

The writ petition is accordingly disposed of.

Order Date :- 3.4.2018/pks